

HEADNOTE

“- Considering that Art. 49 (5) does not require the application for a language change to be included in the Statement of Defence, R. 323.3 must accordingly be interpreted in such a manner that it does not preclude the lodging of the application beforehand.

This interpretation ensures that the requested change, should it be granted, is implemented as early as possible to limit its impact on the course of the proceedings.

- In the event where the outcome of the balancing of interests is equal, the position of the Defendant(s) prevails in the overall assessment.

- The domiciliation of parties in countries where the language of the proceedings initially chosen is or is not an official language is important to decide on an application pursuant to R. 323 RoP. However, consideration must also be given to the need for coordination and rapid communication among all Defendants.”

COURT
Local Division in Milan

PATENT
EP2164678

KEYWORDS

Change of the language of the proceedings...

PROCEEDINGS
Procedural order

Loading/unloading system serving a
sheet cutting centre, feeding tray
therefor and relative handling method

Article 49 Language of proceedings at the Court of First Instance

SUMMARY

The Local Division in Milan issued a procedural order. The patent at issue relates to a loading and unloading system serving a sheet cutting centre. According to the headnotes of the decision, applications for language changes under the Rules of Procedure may be filed before the Statement of Defence is submitted, allowing the court to implement any approved change as early as possible in the proceedings. Where the interests of both parties are equally balanced in assessing such an application, the defendant's position takes precedence in the overall evaluation. The domiciliation of the parties in countries where the initially chosen language is or is not official is a relevant factor, though the court must also weigh the practical need for effective coordination and swift communication among all defendants.